

Amended Financial Statement

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE 6.06(5)

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
- ☐ Family Court of Western Australia
- ☐ Other (specify) _____

Filed on behalf of:

Full name: _____

Client ID _____

File number NCC3896/2023 _____

Filed at Newcastle

Filed on

Court location Commonwealth Law Courts
Building, 61 Bolton Street, Newcastle NSW
2300

Next Court date (if known) _____

This form is to be used by a party to a financial proceeding, such as property settlement, maintenance, child support or financial enforcement.

Part A About you

1	What is your family name as used now?	Given names?
	Cooke	Stephen Christopher
	213 Morgan Street	
	Merewether	State NSW Postcode 2291

Please tick as applicable – only one box should be selected

AFFIDAVIT – for financial proceedings:

I swear* / affirm* that:

- (a) I have read Rule 6.06 and I am aware that by law I have an obligation to make a full and frank disclosure of my financial circumstances to the Court and each other party. In particular, I have disclosed in this document or in an affidavit filed by me or on my behalf under Rule 6.06(6), all matters I am required to disclose under Rule 6.06.
- (b) The information in the financial statement and any attachments to it which are within my personal knowledge are true. Where I have given an estimate in this financial statement, it is based on my knowledge and is given in good faith. All other information given in this financial statement and any attachments is true to the best of my knowledge, information and belief.
- (c) I have no income, property or financial resources other than as set out in this document or any affidavit filed by me under Rule 6.06(6).

Your signature	DocuSigned by: Stephen Christopher Cooke	Place Merewether	Date 12 February 2024
Before me (signature of witness)	DocuSigned by: Jacqueline Ann Turner	Jacqueline Turner	Full name of witness (please print)

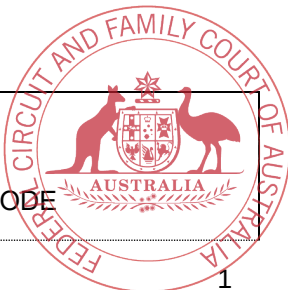
- ☐ Justice of the Peace
- ☐ Notary public
- ☒ Lawyer
- ☐ Authorised Staff Member of the Court

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000. This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

This financial statement was prepared by:
☐ the applicant ☐ the respondent ☒ lawyer

Jacqueline Ann Turner
CLA7584701

PRINT NAME AND LAWYER'S CODE



Part B Financial summary

IMPORTANT: As you complete the rest of this form you will be asked to transfer the totals for Items D, G, I-L to this summary

2	A	Your total average weekly income. (THIS IS THE FIGURE AT ITEM 16)	\$	NIL
	B	Your total personal expenditure. (THIS IS THE FIGURE AT ITEM 33)	\$	NIL
	C	Total value of property owned by you. (THIS IS THE FIGURE AT ITEM 44)	\$	966,085.61
	D	Total gross value of your superannuation. (THIS IS THE FIGURE AT ITEM 45)	\$	150,402.96
	E	Total of your liabilities. (THIS IS THE FIGURE AT ITEM 55)	\$	648,935
	F	Total of your financial resources. (THIS IS THE FIGURE AT ITEM 58)	\$	NIL

Part C Your employment details

3 What is your current occupation?

Parent and Homemaker

4 Are you employed?

☒

No. Go to Part D

☐

Yes. Give details

☐

full time

☐

permanently

☐

on contract

☐

part time

☐

casually

5 What is the name of your employer?

N/A

6 What is the address of your employer?

STATE

POSTCODE

PHONE

7 How long have you been employed at this place?

YEARS

MONTHS

DAYS

8 Are you self-employed?

☐

No

☐

Yes

STATE THE NAME OF THE BUSINESS / COMPANY / PARTNERSHIP / TRUST

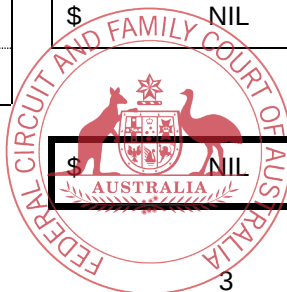


Part D **Your income**

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

AVERAGE WEEKLY AMOUNT

9	Total salary or wages before tax		\$	NIL
10	Investment income (before tax)	INCOME TYPE (eg. rent, interest, dividend)	\$	NIL
		PAID BY (bank, mortgagor, company, tenant)		
		INCOME TYPE (eg. rent, interest, dividend)	\$	NIL
		PAID BY (bank, mortgagor, company, tenant)		
11	Income from business/ partnership/ company/ trust	NAME OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST	\$	NIL
		TYPE OF BUSINESS		
		ADDRESS OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST		
		State Postcode		
12	Government benefits	TYPE OF BENEFIT	\$	NIL
		TYPE OF BENEFIT	\$	NIL
13	Maintenance/ child support	PAID BY		
		FOR THE BENEFIT OF	\$ REQUIRED TO BE PAID	ACTUALLY RECEIVED
			\$ NIL	\$ NIL
		PAID BY		
		FOR THE BENEFIT OF	\$ REQUIRED TO BE PAID	ACTUALLY RECEIVED
			\$ NIL	\$ NIL
14	Benefits from employment/ business	TYPE OF BENEFIT	\$	NIL
		TYPE OF BENEFIT	\$	NIL
15	Other income	PAID BY	\$	NIL
		TYPE OF BENEFIT		
16	TOTAL AVERAGE WEEKLY INCOME WRITE THE ITEM 16 TOTAL AT ITEM 2A ON PAGE 2 OF THIS FORM			\$ NIL



Part E

Other income earners in your household

Give the name, age and relationship to you and gross income of each other occupant of your household

17	NAME Heather Anne Cooke	AGE 45	RELATIONSHIP TO YOU Wife / Respondent	AVERAGE WEEKLY AMOUNT \$ 9,190
	NAME			\$
	NAME			\$

Part F

Expenses paid by others for your benefit

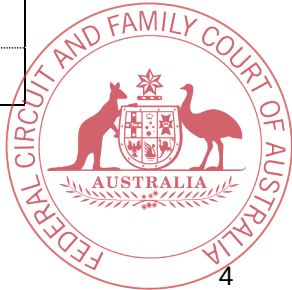
18	PAID BY Respondent	TYPE OF EXPENSE: All expenses	\$
	PAID BY	TYPE OF EXPENSE	\$
	PAID BY	TYPE OF EXPENSE	\$

Part G

Personal expenditure

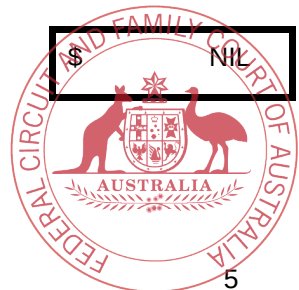
NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

		AVERAGE WEEKLY AMOUNT
19	Total income tax	\$ NIL
20	Superannuation PLAN NAME Future Super	\$ NIL
21	Mortgage payments/ rent NAME OF LENDER/LANDLORD	\$ NIL
22	Rates, unit levies	\$ NIL
23	Other mortgage payment NAME OF LENDER ADDRESS OF PROPERTY	\$ NIL
24	Other rates, unit levies	\$ NIL
25	Life insurance premiums TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL
	TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL



PERSONAL EXPENDITURE - CONTINUED

		AVERAGE WEEKLY AMOUNT
26 Other insurance premiums	TYPE OF POLICY	
	POLICY NO:	
	NAME OF INSURER	
	TYPE OF POLICY	
	POLICY NO:	
	NAME OF INSURER	
	TYPE OF POLICY	
	POLICY NO:	
	NAME OF INSURER	
27 Motor vehicle registration	REG. NO:	VEHICLE MAKE
28 Hire purchase/ lease agreements	DESCRIBE THE PROPERTY	
	NAME OF COMPANY/ PERSON	
29 Loan repayments	NAME OF LENDER	
	TYPE OF LOAN	
30 Credit card payments	CARD TYPE	Minimum Payment \$
	NAME OF COMPANY	
	CARD TYPE	Minimum Payment \$
	NAME OF COMPANY	
31 Maintenance payments/ child support	PAID FOR THE BENEFIT OF	
	☐ assessment	AMOUNT OF ASSESSMENT, AGREEMENT OR ORDER \$
	☐ agreement	
	☐ order	
32 Total of all other expenditure		
33	TOTAL PERSONAL EXPENDITURE WRITE THIS ITEM 33 TOTAL AT ITEM 2B ON PAGE 2 OF THIS FORM	



Part H Personal expenses you pay for the benefit of others

34 State which of the expenses in Part G are paid by you for other persons

NAME OF PERSON

GIVE DETAILS

\$ NIL

NAME OF PERSON

GIVE DETAILS

\$ NIL

Part I Property owned by you

CURRENT VALUE OF YOUR SHARE

35 Home

FULL NAME OF THE REGISTERED OWNERS

Stephen Christopher Cooke and Heather Anne Cooke
(Joint tenants)

PROPERTY ADDRESS

Unit 1/213 Morgan Street, Merewether NSW 2291

YOUR % SHARE 50%

\$ E800,000

36 Other real estate

PROPERTY ADDRESS

REGISTERED OWNERS:

YOUR % SHARE

\$

PROPERTY ADDRESS

REGISTERED OWNERS:

YOUR % SHARE

\$

37 Funds in banks, building societies, credit unions or other financial institutions

NAME AND BRANCH BSB Joint WBC Offset Account

ACCOUNT HOLDER & NUMBER

Stephen Christopher Cooke and Heather Anne Cooke
Account ending #3193

CURRENT BALANCE \$-3,698

\$ -3,698

NAME AND BRANCH BSB Joint WBC Choice Account

ACCOUNT HOLDER & NUMBER

Stephen Christopher Cooke and Heather Anne Cooke
Account ending #5055

CURRENT BALANCE \$0

\$ 0



NAME AND BRANCH BSB Joint WBC Choice Account	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke Account ending #5063	
CURRENT BALANCE	\$0
NAME AND BRANCH BSB Joint WBC Choice Account	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke Account ending #2594	
CURRENT BALANCE	\$0
NAME AND BRANCH BSB Westpac Choice Account	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke Account ending #3193	
CURRENT BALANCE	\$4,554

\$	0
\$	0
\$	4,554

38 Investments

NAME AND TYPE OF INVESTMENT Praemium Prae Investments Portfolio as at 12 February 2024 (ID: SMA00418788)	
FULL NAMES OF ALL OWNERS Stephen Christopher Cooke	
NUMBER OF SHARES HELD	YOUR % SHARE 100%
NAME AND TYPE OF INVESTMENT	
FULL NAMES OF ALL OWNERS	
NUMBER OF SHARES HELD	YOUR % SHARE

\$ 148,978
\$



PROPERTY OWNED BY YOU - CONTINUED

CURRENT VALUE OF YOUR SHARE

39

Life Insurance policies

POLICY TYPE	POLICY NO.
NAME OF INSURANCE COMPANY	
FULL NAMES OF ALL OWNERS	YOUR % SHARE

\$

NIL

40

Motor vehicle

YEAR	MAKE
MODEL	REGISTRATION NO.
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	
YEAR	MAKE
MODEL	REGISTRATION NO.
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	

\$

NIL

41

Interest in a business including a business operated by you as a sole trader, in a partnership or through a proprietary company or a trust

NAME OF BUSINESS
ADDRESS OF BUSINESS
YOUR % SHARE
Business type (Mark [X] which applies) _ Sole trader _ Partnership _ Proprietary company / trust

\$

NIL

42

Household contents

\$

Nominal

43

Other personal property

SPECIFY IT Equipment
YOUR % SHARE 100%

\$

16,251.61

44

TOTAL VALUE OF PROPERTY OWNED BY YOU
WRITE THIS ITEM 44 TOTAL AT ITEM 2C ON PAGE 2 OF THIS FORM

\$966,085.61

Part J Superannuation

You must attach a completed Superannuation Information Form for each superannuation interest if you are seeking an order for property settlement.



45

Interest in
superannuation

GROSS VALUE

\$150,402.96

NAME OF SUPERANNUATION FUND 1

Future Super as at 30 June 2023

TYPE OF INTEREST

- | | |
|---|---|
| ☒ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested accumulation interest | ☐ Small superannuation account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

NAME OF SUPERANNUATION FUND 2

\$

TYPE OF INTEREST

- | | |
|---|---|
| ☐ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested accumulation interest | ☐ Small superannuation account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

NAME OF SUPERANNUATION FUND 3

\$

TYPE OF INTEREST

- | | |
|---|---|
| ☐ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested accumulation interest | ☐ Small superannuation account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

TOTAL GROSS VALUE OF YOUR SUPERANNUATION
WRITE THIS ITEM 45 TOTAL AT ITEM 2D ON PAGE 2 OF THIS FORM

\$150,402.96



Part K Your liabilities

		AMOUNT OF YOUR SHARE
46	Home mortgage/s	
	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne cooke 3x separate Westpac Mortgages over Merewether property	\$ 524,053
	YOUR % SHARE 50%	
47	Other Mortgages	
	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne cooke Westpac Mortgage over Southport Property, Account #7778	\$ 124,882
	YOUR % SHARE 50%	
48	Total income tax assessed and unpaid for the last financial year Date due: / /	\$ NIL
49	Total income tax assessed and unpaid in previous financial years	\$ NIL
50	Loans	
	NAME OF LENDER	\$ NIL
	TYPE OF LOAN _ Overdraft _ other (specify) _ personal loan _	
	FULL NAMES OF ALL BORROWERS	
	YOUR % SHARE	
51	Credit/ charge cards	
	SPECIFY CARD PROVIDER AND TYPE	\$ NIL
	SPECIFY CARD PROVIDER AND TYPE	\$ NIL
52	Hire purchase/ lease	
	NAME OF LENDER	\$ NIL
	Date of final payment _/_/	
	FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT	
	YOUR % SHARE	
	NAME OF LENDER	\$ NIL
	Date of final payment _/_/	
	FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT	



YOUR % SHARE



YOUR LIABILITIES - CONTINUED

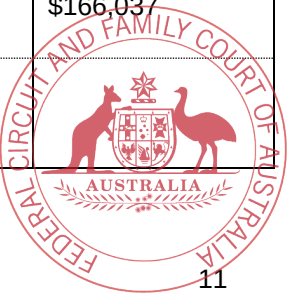
		AMOUNT OF YOUR SHARE
53 Other personal liabilities	SPECIFY	\$ NIL
	FULL NAME OF ANY OTHER LIABLE PERSON	
	YOUR % SHARE	
54 Other personal business liabilities	SPECIFY	\$ NIL
	FULL NAME OF ANY OTHER LIABLE PERSON	
	YOUR % SHARE	
55	WRITE THIS ITEM 55 TOTAL AT ITEM 2E ON PAGE 2 OF THIS FORM	TOTAL LIABILITIES \$ 648,935

Part L Financial resources

56 Interest in any trust or deceased estate	SPECIFY	\$ NIL
57 Other financial resources	SPECIFY	\$ NIL
58	WRITE THIS ITEM 58 TOTAL AT ITEM 2F ON PAGE 2 OF THIS FORM	TOTAL FINANCIAL RESOURCES \$ NIL

Part M About disposal of property

	Item	How disposed of	Value/ amount received
59 Specify property falling within Rule 6.06(3)(g) disposed of by you or on your behalf in the 12 months before separation and since your separation	37 – Account ending #2594	Unilaterally Withdrawn by the Respondent	\$29,750
	37 – Account ending #5063	Unilaterally Withdrawn by the Respondent	\$173,000
	47 – Account ending #7778	Unilaterally Withdrawn by the Respondent	\$166,037



Part N Orders for maintenance, child support, financial enforcement

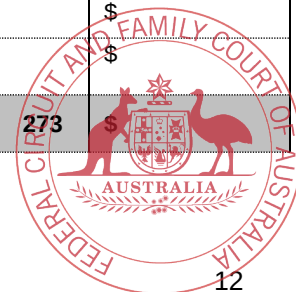
Complete and attach this page only if the application is for orders for maintenance for yourself, the other party or your children or child support or financial enforcement

60

Average weekly expenses

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

ITEM	TOTAL	FOR YOU	FOR CHILDREN (IF APPLICABLE)	OTHER ADULTS (IF APPLICABLE)
Food	\$ 300	\$	\$	\$
Household supplies	\$ 30	\$	\$	\$
House repairs	\$ E38	\$	\$	\$
Gas	\$ E60	\$	\$	\$
Electricity	\$ E51	\$	\$	\$
Internet	\$ 28	\$	\$	\$
Telephone	\$ 16	\$	\$	\$
Motor vehicle				
petrol	\$ E60	\$ E60	\$	\$
maintenance	\$ E50	\$ E50	\$	\$
Fares/ car parking	\$ 30	\$ E30	\$	\$
Clothing and shoes	\$ 130	\$ 70	\$ 60	\$
Children's activities	\$ E90	\$	\$ E90	\$
Child minding	\$ NIL	\$	\$	\$
Medical, dental and optical (not including health insurance premiums)	\$ 76	\$ 58	\$ 18	\$
Entertainment/ hobbies	\$ 40	\$	\$	\$
Holidays	\$ 162	\$ 81	\$ 81	\$
Education expenses, including fees and levies	\$ E15	\$	\$ 15	\$
Chemist/ pharmaceutical	\$ 26	\$ 17	\$ 9	\$
Gardening/ lawn mowing	\$ 10	\$ 10	\$	\$
Cleaning (house/ pool)	\$ NIL	\$	\$	\$
Repairs – furnishings and appliances	\$ 100	\$	\$	\$
Dry cleaning	\$ NIL	\$	\$	\$
Books and magazines	\$ 10	\$	\$	\$
Gifts	\$ 50	\$	\$	\$
Hairdressing, toiletries	\$ 50	\$	\$	\$
Other necessary commitments (specify)	\$ 35	\$	\$	\$
TOTAL	\$ 1,457	\$ 376	\$ 273	



Part O Additional information

You should set out here or on an additional page any item that you may not be able to include in any section of the document. Please include the Part and paragraph number that it continues from.

This application was prepared by

☐ applicant/s
☐ respondent/s

☒ lawyer

Jacqueline Ann Turner

CLA7584701

PRINT NAME AND LAWYER'S CODE

Approved by Chief Justice/Chief Judge pursuant to Rule 15.21

0921V1

